

APPEAL BRIEF — ONE-PAGE SUMMARY

Before the Bernalillo County Board of County Commissioners — July 2026

Case	ZBA2026-0001 (appeal docket) · BA2026-0001 (appeal application) · ZA2026-0024 (underlying CUP)
Property	9600 2nd Street NW, Bernalillo County, NM 87114 — 3.87 acres, zoned A-1
Parties	Appellant: Pat Hauser, for the Maria-Diers Neighborhood Association & the Regional and Corridor Appellant Coalition. Applicant: Albuquerque Islamic Center / Prestige Custom Design LLC (agent: Joseph Tahat).
Decision appealed	Planning Commission's July 1, 2026 decision approving a conditional use permit for a 60,000-gross-SF, high-volume multi-use complex (worship hall, recreation facility, offices) — the 60,000-SF cap imposed by the Board itself.

This is a neutral, evidence-based land-use challenge grounded in traffic-engineering standards, procedural due process, legal error, and the mandatory findings of Section 24 of the Bernalillo County Zoning Ordinance. It does not challenge the Applicant's right to build a house of worship or the religious character of the use; the same relief would be sought against any secular applicant proposing a comparable high-volume use on this corridor.

Key Grounds for Appeal

- **No Traffic Impact Analysis:** The CUP was approved without any project-specific TIA or traffic study. The only traffic study in the record — the 2020 Murphy Express Traffic Study (Packet Pg. 1407-1426) — predates even the ITE 11th Edition and documented Level-of-Service F on the Alameda/2nd Street corridor. The Applicant bore the burden under Section 24 to show no undue traffic congestion or hazard; that burden was not met.
- **No current ITE standard:** The County applied no current ITE trip-generation standard. Using the Applicant's own attendance figures and ITE 11th Ed. (2021) rates yields ≈2,164 weekly trips, 560 on a single Friday, and 168 PM peak-hour trips — before counting regional draw or Eid events. The ITE 12th Edition (Aug. 2025) is the current professional standard and was current before the July 1, 2026 hearing.
- **Day-before site-plan revision:** A revised site plan submitted the afternoon of June 30, 2026 was not meaningfully available to the public before the hearing — procedurally improper and substantively unfair.
- **Unanswered continuance motions:** Appellant's timely 60-day and 120-day continuance motions were never ruled upon before, during, or after the hearing — a procedural due-process violation.
- **RLUIPA misapplied:** The warning that requiring a TIA could trigger RLUIPA liability was legally misplaced; RLUIPA requires equal treatment of religious and secular assemblies, not exemption from neutral, applicable traffic-safety standards.
- **Additional grounds:** the building-height finding lacked evidentiary support; Public Works Technical Standards §8.4 was violated; revised drawings still depict the removed school/daycare; the Balloon Fiesta raised independent unaddressed concerns; and the North Valley Area Plan's transportation policies confirm the corridor's constrained rural character.

Key Record Facts

- **20% protest petition satisfied:** signers own ≈64% of the land within 100 feet of the site (excluding right-of-way), triggering the extraordinary-majority (2/3) vote requirement.
- County traffic engineer Julia Luna testified that Alameda "absolutely does have a congestion issue" and "it is a regional problem," warning that a TIA deferred to building permit "is not mitigating the regional issue."
- Commissioner Withers voted to grant the appeal: "There is not a way to address the traffic issues... good luck. That really frustrates me."
- The site is in a rural area outside Albuquerque city limits, governed by the North Valley Area Plan's rural designation.

Relief Requested

- Reverse or remand the July 1, 2026 approval.
- Require a project-specific TIA and corridor-level analysis at the conditional-use stage — not deferred to building permit.
- Rule on and uphold Appellant's 60-day and 120-day continuance motions.
- Require written rulings on continuance motions and written responses to formal procedural inquiries.
- Correct the misapplication of RLUIPA, and adopt interim protections plus ordinance reforms (neutral temporary moratorium, corridor/regional studies, and ordinance amendments for high-volume uses).

Conclusion: the appeal should be granted.

This summary is a guide to the full 36-page Appeal Brief and supporting exhibits, which are available on this portal. Prepared by Appellant and Appeal Coalition.